REDBELLY

COMMUNITY EXPLAINER · PREPARED FOR THE REDBELLY DAO

Australia's Digital Assets Framework Act: what it means for Tokeniser

A plain-language guide to the new licensing rules for digital asset platforms and tokenised custody platforms, what changes for issuers, and where Redbelly's built-in compliance fits.

Royal Assent
8 April 2026

Commences
8 April 2027 (Act s 2; ASIC CP 392)

Existing operators apply by
7 October 2027

Information current as at
26 October 2026

Read online, with every source
digital-assets-act-guide.vercel.app

Reading time
About 20 minutes

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It does not say that Redbelly, Tokeniser or any issuer is licensed or compliant under the new law, and it should not be read that way. ASIC's standards and guidance are still drafts and may change. Get advice from a qualified Australian lawyer before acting on anything here.

This is an independent community explainer prepared for review by the Redbelly DAO. It is not an official publication of Redbelly Network, Tokeniser, ASIC or the Australian Government.

How to read this explainer

Every factual statement links to a numbered source (S1, S2 and so on) with a pinpoint, such as a section of the Act or a paragraph of an ASIC paper. The full list is in Sources. The labels below separate what the law says from what others say and from our own reading.

THE ACT SAYS	What the Act itself says.
ASIC SAYS	ASIC's statements. Where ASIC is only proposing something, the text says *draft*.
COMPANY STATEMENT	What Redbelly or Tokeniser say about themselves. We have not verified these claims.
OUR ANALYSIS	The writer's interpretation. This is not settled law.

The explainer takes about 20 minutes to read. If you are short on time, read 01 The short version and 05 Timeline.

01

The short version

THE ACT SAYS

The *Corporations Amendment (Digital Assets Framework) Act 2026* adds two new kinds of financial product to the Corporations Act: **digital asset platforms (DAPs)** and **tokenised custody platforms (TCPs).** S1 · Sch 1 item 2, s 764A(1)(la)–(lb)

ASIC SAYS

- **What changes:** businesses that run these platforms will need an Australian financial services (AFS) licence, unless an exemption applies. They will also have to give customers disclosure documents and platform rules, and meet ASIC standards on holding assets, trading and settlement, and capital. S3 · 26-245MR S6 · RG 000.7–000.8
- **When:** Royal Assent was 8 April 2026. The Act starts on **8 April 2027**, which is also when licence applications open. Platforms already operating must apply by **7 October 2027** and can keep operating while ASIC assesses them. S1 · s 2 S5 · p 5, para 45 Why not 9 April?

THE ACT SAYS

Who is not caught: small platforms that meet strict low-value conditions; people who only tell others about a platform, or arrange for them to use it, as a minor part of their business; and qualifying public digital token infrastructure, along with the people who validate it. S1 · s 911A(2)(ja)–(jb), s 9E, s 766A(3)(b)

OUR ANALYSIS

For issuers using Tokeniser: the Act regulates platforms, not the act of issuing a token. A fund or company that issues its units or shares on-chain still has to follow the existing rules for that product. The new rules matter if anyone holds tokens or keys for investors, or if an issuer creates one token for each asset it holds in custody. The biggest open question is whether Redbelly meets the Act's test for "public digital token infrastructure". S6 · RG 000.35, 000.46–000.48 S12 · Technology

02

What the Act is, and why it was introduced

ASIC SAYS

The Act carries out the Government's commitment to modernise Australia's rules for digital assets. It fills regulatory gaps that left the industry unsure where it stood. Its aims are to foster innovation, strengthen competition and growth, and strengthen Australia's position in the global digital asset ecosystem. It amends both the Corporations Act and the ASIC Act. S5 · paras 2–5

ASIC's approach follows the principle of "same activity, same risk, same regulatory outcome". ASIC Commissioner Alan Kirkland said that bringing these platforms into the financial services framework "means consumers can have greater confidence when trading digital assets". S3 · 26-245MR

ASIC also says the regime cannot remove all risk. Many digital assets are high-risk speculative investments and will stay that way, and consumers could lose the entire value of their investment. S5 · para 14

The reforms bring Australia closer to overseas regimes, including the EU's Markets in Crypto-Assets Regulation (MiCA), Singapore and Hong Kong, which followed IOSCO's 2023 recommendations. S5 · paras 8–9

ASIC SAYS

It builds on existing law. ASIC's view is that financial services law is broad and technology-neutral and already applies to many digital assets. In October 2025 ASIC updated its Information Sheet 225 (INFO 225), which lists tokenised securities among the digital assets it treats as financial products. It also gave a sector-wide "no-action" position to firms moving to licensing. That deadline was first 30 June 2026 and was later extended to 30 September 2026. S9 · 25-250MR S8 · 25 June 2026 S3 · Background

OUR ANALYSIS

Before this Act, whether a crypto exchange or custodian needed a licence depended mostly on whether the tokens it handled were themselves financial products. Under the Act, **the platform itself is the financial product**, separate from the tokens on it. So the platform needs a licence whatever kind of tokens it holds. ASIC puts it this way: the platform is a financial product, while the assets on it "may or may not be". S6 · RG 000.20 S5 · para 53

03

The key ideas in plain English

TERM	WHAT IT MEANS	SOURCE
Digital token	An electronic record that someone can "factually control": they can transfer it, stop others transferring it, and show that they can do both. A bank's account ledger is not a digital token, because the bank changes the balance rather than moving the record.	S1 · s 761GB(1)–(2), Note 3
Possession	You "possess" a token if you can factually control it, and more than one person can. But you do not share possession if you need someone else's express cooperation and they can act alone.	S1 · s 86(2)–(3), s 761GB(3)
Digital asset platform (DAP)	An arrangement where an operator possesses digital tokens *for or on behalf of* clients, for example as trustee or on the client's instructions. ASIC says an operator may simply hold tokens, or may also offer buying, selling, swapping, staking or lending.	S1 · s 761GC; S6 · RG 000.36–000.39
Tokenised custody platform (TCP)	An operator holds an asset other than money, creates a single token for each asset, and whoever holds the token can redeem the asset or direct its delivery. ASIC's example is gold held in custody. If something meets both definitions, it is a TCP, not a DAP.	S1 · s 761GD, s 761GC(4); S7 · p 1
Public digital token infrastructure (PDTI)	Software or hardware used for transmitting, processing or recording tokens. In the Act's words, its protocols must be "a set of open source and publicly accessible standards" that work "in a non-discretionary manner". They must also let *any person* contribute (for example by validating), and must not rely on any one participant whose role is critical. Infrastructure can also qualify if regulations prescribe it. PDTI is not a managed investment scheme or a financial product, and validating it is not a financial service.	S1 · s 9E(2)(a)–(c), (3); s 9 "managed investment scheme" (mf); s 765A(1)(xa); s 766A(3)(b)
Wrapped token	A token you can redeem for another asset. The redemption right is ignored when deciding whether the wrapped token is a financial product. This does not apply if holders get rights that differ from holding the asset directly.	S1 · s 765E
Custodial staking	A platform stakes clients' tokens with their express authority and passes on the rewards after fees. If the platform's issuer holds the right AFS licence, the staking part is not treated as a separate managed investment scheme.	S1 · s 9F; s 9 "managed investment scheme" (me)

04

Who needs a licence, and who does not

Running a platform

THE ACT SAYS

- DAPs and TCPs become financial products, unless the platform is a managed investment scheme. S1 · s 764A(1)(la)–(lb)
- Platform services must be provided by, or on behalf of, a "constitutionally-covered corporation", a term the Act defines by reference to the Constitution. Breaching this is a civil penalty matter. S1 · s 766M; s 9
- A licensed operator must comply with ASIC's asset-holding standards and transactional and settlement standards, have platform rules with set content, and obey any ministerial ban on particular products. S1 · ss 912BB–912BD, 912BG

ASIC SAYS

- If you operate a DAP or TCP, you need an AFS licence to issue it, unless an exemption applies. S6 · RG 000.8, RG 000.78
- *Draft:* ASIC proposes separate "issue" authorisations for five business models: custody-only DAP, DAP acting as agent, DAP acting as principal, DAP as trading venue provider, and TCP operator. S6 · Table 4, RG 000.90
- *Draft:* you cannot issue a DAP or TCP as another licensee's corporate authorised representative. The issuer must hold the authorisation itself, apart from a limited related-party exception expected in regulations. S6 · RG 000.82–000.85
- If a facility is a trading venue for tokens that *are* financial products, the financial market or clearing and settlement licensing regime can apply instead. S6 · RG 000.60–000.62

People around the platform

THE ACT SAYS

The Act creates a new kind of "dealing": a client of a platform who uses it on behalf of *their own* customers is dealing in it. Using a platform for your own internal purposes is not dealing. S1 · s 766C(1) (ca) and note

ASIC SAYS

Draft: you may also need a licence if you advise on a DAP or TCP, arrange for someone else to use one or be issued one, or use one on behalf of others. S6 · RG 000.67, Table 2, RG 000.80

Exemptions

THE ACT SAYS

- **Low-value DAPs.** The issuer does not need a licence only if all four conditions are met:
  1. no financial products are held on any DAP issued by its closely-related group;
  2. the total value of transactions through those DAPs in the last 12 months is **$10 million or less**;
  3. each time a token is added for a client, that client's total entry value across those DAPs is **$5,000 or less**;
  4. it has lodged a notice with ASIC saying it relies on the exemption.

  Regulations can raise these amounts. S1 · s 911A(2)(ja), (4B), (6)
- **Limited advice and arranging.** You only tell someone a DAP or TCP exists and/or arrange for them to use it, in the ordinary course of your business, and this is not a significant part of your business. S1 · s 911A(2)(jb)
- **Validators of PDTI.** Taking part in consensus on qualifying public digital token infrastructure is not a financial service. S1 · s 766A(3)(b), s 9E

ASIC SAYS

Draft: the low-value thresholds are expected to rise with inflation under regulations. Further exemptions for sub-custodians, overseas arrangements, overseas related companies and nominee companies are expected in regulations that are not yet made. A platform that relies on an exemption is still a DAP or TCP. S6 · Table 3, RG 000.76 S5 · para 38

Usually outside the regime

ASIC SAYS

- Holding tokens does not on its own make something a DAP. The operator must hold them *for or on behalf of* a client. S6 · RG 000.37
- *Draft:* a technology provider that does not possess tokens for clients is not a DAP. Some multi-party computation (MPC) providers are expected not to count as possessing tokens under the coming regulations. S6 · RG 000.41(b)
- *Draft:* a "native" tokenised fund, where each token is a unit in a unit trust and the blockchain is the main unit register, would generally be a managed investment scheme, not a TCP. S6 · RG 000.35 note

OUR ANALYSIS

If you hold your own tokens in a wallet you control, no operator holds them for you, so on the definition no DAP is involved. S1 · s 761GC(1)

ASIC's seven questions, simplified

Simplified from ASIC's draft Figure 1. S6 · Figure 1 It is a reading aid, not a test of your situation.

1. **Is the electronic record a digital token?** If not, the DAP/TCP regime does not apply (other laws may).
2. **Do you hold an asset and record the right to redeem it with a token?** If so, consider the TCP rules.
3. **Do you hold digital tokens for clients and act on their instructions?** If so, consider the DAP rules. If neither 2 nor 3 applies, the regime does not apply.
4. **Are any of the underlying assets financial products?** If you run a neutral trading venue for them, you may need a market or clearing and settlement licence.
5. **Are you the operator, or the operator's agent?** If not, you may still be advising, arranging or using a platform for others.
6. **Does an exemption apply?** If so, no AFS licence is needed to operate the platform. Keep records to show the exemption applies.
7. **Otherwise,** you need an AFS licence to issue the platform, and you must meet the obligations that come with it.

05

Timeline

29 Oct 2025 — ASIC updates INFO 225 and starts a sector-wide no-action position for firms moving to licensing under existing law. S9 · 25-250MR

26 Nov 2025 — Second reading speech on the Bill in the House of Representatives. Senate speech on 5 February 2026. S1 · endnote

1 Apr 2026 — Parliament passes the Act. S2 · Roadmap S5 · para 1

8 Apr 2026 — **Royal Assent.** S1 · assent line S5 · para 1

20 Apr 2026 — ASIC publishes its 18-month implementation roadmap. S2 · Roadmap

25 Jun 2026 — ASIC extends the INFO 225 no-action deadline from 30 June to 30 September 2026. S8 · news item

30 Sep 2026 — No-action deadline for applying for a licence under the *existing* law. S8 · news item S3 · Background

15 Oct 2026 — ASIC releases Consultation Paper 392: a draft regulatory guide, draft asset-holding standards, draft transactional and settlement standards, and draft financial requirements. S4 · CP 392 S3 · 26-245MR

27 Nov 2026 — Submissions on CP 392 close at 5pm AEDT (fintech@asic.gov.au). S3 · 26-245MR

Nov 2026 – Mar 2027 — ASIC reviews feedback and settles its guidance. Final instruments and guidance are planned for March 2027. S5 · p 5, stages 3–4

8 Apr 2027 — **The Act commences** and applications for DAP and TCP authorisations open. S1 · s 2 S5 · p 5, para 45

8 Apr – 7 Oct 2027 — **Six-month transition period.** If you do not hold a licence covering the service, the new rules do not apply to it during this window. If you apply within the window, they do not apply until the day after ASIC decides your application. S1 · ss 1730, 1732

7 Oct 2027 — **Last day** for existing firms to apply for a new licence or a variation. S5 · p 5, para 45

8 Oct 2027 — Operators need a DAP or TCP authorisation unless they applied in time or an exemption applies. If you did not apply, the new rules apply straight after the transition period. S5 · para 39 S1 · s 1732 note

From Oct 2027 — Full implementation, including ASIC supervision and enforcement ("Month 18 onwards" in ASIC's roadmap). S2 · Roadmap

Why 8 April 2027 and not 9 April?

THE ACT SAYS

The Act starts on "the day after the end of the period of 12 months beginning on the day this Act receives the Royal Assent". The commencement table published with the Act gives the date as 8 April 2027. S1 · s 2

ASIC SAYS

ASIC's October 2026 consultation material says the laws commence on 8 April 2027. S3 · 26-245MR S5 · p 5 S7 · p 1 Earlier ASIC pages, including the April 2026 roadmap and a May 2026 news item, said 9 April 2027. S2 · Roadmap S10 · 4 May 2026

OUR ANALYSIS

This explainer uses 8 April 2027 because it matches the Act's commencement table and ASIC's most recent material. The two dates are one day apart. If exact timing matters to you, confirm it with ASIC or your adviser.

06

What changes for issuers who tokenise through Tokeniser

What Tokeniser says about itself

COMPANY STATEMENT

- Tokeniser is a Redbelly Network project. It runs on Redbelly, which it calls "Australia's public digital token infrastructure". S11 · Home S12 · Technology
- It says products issued through Tokeniser "operate under an Asset Issuer's existing licensing". S11 · FAQ
- It says it programs eligibility checks into every asset (identity, KYC, AML/CTF, wholesale and sophisticated investor tests, and target market determinations), and checks each holder and transfer. S11 · FAQ S15 · Knowledge Hub
- It uses the ERC-3643 and ERC-7575 token standards. S13 · Protocol Finance
- It says it is built for professional fund administration, not retail self-custody, and provides key management and recovery for institutional investors. S16 · Knowledge Hub
- It lists its own "guardrails": the offer is still regulated; regulations can move the line on what counts as public infrastructure; a protocol with a controlling foundation or admin key has to show it is decentralised; and tokens that carry financial-product rights are regulated on their substance. S13 · Guardrails

These are Tokeniser's own statements. This explainer has not verified them. None of the sources we reviewed says that Tokeniser or Redbelly is licensed or compliant under the new regime, which has not yet started.

What stays the same

ASIC SAYS

- ASIC considers tokenised securities to be financial products under existing law. S9 · 25-250MR Firms must keep complying with existing licensing requirements while the reforms are rolled out. S2 · Roadmap
- *Draft:* a token created under a TCP over a financial product is generally the same kind of financial product as the underlying asset. S6 · RG 000.46–000.48
- *Draft:* a "native" tokenised fund, where the blockchain is the main unit register, would generally be a managed investment scheme, not a TCP. S6 · RG 000.35 note

OUR ANALYSIS

Take a fund or company that issues its own units or shares on-chain through Tokeniser, where investors hold them in their own wallets. For that issuer, the Act is unlikely to change the core product rules. The offer documents, target market determinations, anti-money laundering checks and existing licence still do the work. The Act adds rules for platforms, and an issuer is affected only if what it does, or what someone does for it, fits a platform definition.

Where the new rules can reach an issuer

IF YOU…	WHAT THE LAW SAYS	OUR ANALYSIS: WHAT TO CHECK
Hold investors' tokens or keys, or appoint someone to do it	Possessing tokens for clients is the core of a DAP. Whatever an agent does counts as done by the operator. S1 · ss 761GC, 761GE *Draft:* ASIC proposes a "custody-only DAP" authorisation. S6 · RG 000.43, Table 4	Who can move investor tokens? If it is anyone other than the investor, that party may be operating a DAP and need a licence or an exemption.
Hold a real asset and mint one redeemable token for each asset	That is a TCP. The operator needs a licence and must have platform rules. Before issuing to retail clients, it must give them a DAP/TCP Guide and have a voting policy. S1 · ss 761GD, 912BC, 912BG, 1020AN, 1020AP	Is the structure a TCP, or a managed investment scheme? Divisibility and "same class of asset" limits matter. S1 · s 9 "managed investment scheme" (md)
Raise money with a prospectus through a DAP or TCP	You must promptly tell the platform operator and each custodian about supplementary or replacement documents, stop orders and withdrawals. The prospectus need not describe the platform. S1 · s 741A	Build these notifications into your offer process.
Want secondary trading	A venue for tokens that are financial products may need a market licence. A DAP trading venue needs its own authorisation. The PDTI carve-outs help only if the infrastructure qualifies. S6 · RG 000.60–000.62, Table 4 S1 · s 9E	Map exactly where trades are matched and settled, and which regime covers each step.
Use distributors who promote or explain the platform	The limited advice and arranging exemption applies only if this is not a significant part of their business. Otherwise they need an authorisation. S1 · s 911A(2)(jb) S6 · RG 000.80	Check your distributors' licences before 8 April 2027.

An open question: do admin powers count as "possession"?

THE ACT SAYS

A person possesses a token if they can transfer it, stop others from transferring it, and show they can do both. It does not matter that someone else can do these things too. S1 · s 761GB(2)–(3), s 86(2)

TECHNICAL STANDARD

ERC-3643, which Tokeniser says it uses, requires tokens to have a recovery system and to be able to freeze investor wallets, pause the token and let an agent force transfers. S26 · ERC-3643 S13 · Protocol Finance

OUR ANALYSIS

An issuer or agent with freeze and forced-transfer powers may be able to do all three things in the possession test. The Act does not say directly whether compliance powers like these mean the issuer (or a platform) "possesses" investors' tokens "for or on behalf of" them, which is the heart of a DAP. ASIC's draft guide gives some MPC technology providers expected relief, but we found no equivalent statement about token admin powers. S6 · RG 000.41(b) Issuers should get advice on this point and watch the final regulations and guidance.

Five questions to take to your lawyer

OUR ANALYSIS

1. Apart from the investor, who can move, freeze or recover investor tokens: us, Tokeniser, or an agent? Could that be "possession"?
2. Is our product a managed investment scheme, a security, or an asset held on a TCP?
3. Will any retail clients be involved, which would trigger the DAP/TCP Guide?
4. Where will secondary trading happen, and which regime covers that venue?
5. Do our current licence authorisations cover what we will do from 8 April 2027, or do we need a variation by 7 October 2027?

What holders can expect from licensed platforms

THE ACT SAYS

- Retail clients must get a DAP/TCP Guide before the platform is issued to them. It must cover risks, fees, custodians and how holders' rights differ from holding the asset directly. S1 · ss 1020AN–1020AO
- Platform rules have effect as a contract between the operator and each client. S1 · s 912BG(2)
- ASIC's asset-holding standards must require money held under a platform to be held in trust for clients. S1 · s 912BE(2)(b)

ASIC SAYS

ASIC's planned standards cover holding assets on trust, keeping client assets separate, reconciliation and withdrawal rights. *Draft:* ASIC may publish a list of firms that apply by 7 October 2027. A licensed platform does not make the tokens on it low-risk. S2 · Table 1 S5 · proposal A4, paras 14, 53

07

Where Redbelly's built-in compliance fits, and where it is unclear

OUR ANALYSIS

The table compares requirements in the Act and ASIC's drafts with features described in Redbelly's and Tokeniser's own documents. **"Could help"** means the feature could help a licensee meet the requirement. It does **not** mean anyone is compliant. The legal duties fall on the licensed operator or issuer, not on the technology.

REQUIREMENT	DESIGN FEATURE DESCRIBED IN THE DOCS	OUR READ
Platform rules must set **transparent, non-discriminatory eligibility criteria** for who can become a client. S1 · s 912BG(1)(a)	Receptor, Redbelly's identity protocol, lets developers program eligibility criteria into smart contracts using W3C verifiable credentials, checked by zero-knowledge "Proof by Query" or off-chain "Selective Disclosure". S18 · Home S20 · Eligibility S21 · VCs	**Could help** Code can enforce the criteria. The criteria must still be written into the platform rules, and enforcing them in code does not by itself make them fair or transparent.
Knowing who clients are. The Act's text does not itself set KYC rules; those come from other laws. S1 · whole Act	Network access needs a credential from an accredited issuer, based on a passport and biometric checks. The onboarding SDK covers wallet authentication, KYC and on-chain permissions. S22 · User access S19 · SDK S23 · Accredited issuers	**Could help** Developers choose which credential issuers they trust, so the licensee still decides what it relies on. S20 · Eligibility
Platform rules must state the **settlement method**, who bears the risk, and how changes are communicated. S1 · s 912BG(1)(c)–(d)	Leaderless DBFT consensus with deterministic, quasi-instant finality. Redbelly says the chain cannot fork. S25 · Consensus	**Could help** Final, predictable settlement is easier to describe. Disclosing it is still the operator's job.
Records, reconciliation and reporting for underlying assets. *Draft:* keep wallet and address records for seven years and report wallet lists to ASIC every quarter. S1 · s 912BE(1)(a)(ii) S5 · proposal B5	Public on-chain records. Tokeniser says every compliance check is logged for audit. S14 · Automated compliance S15 · Knowledge Hub	**Could help** ASIC notes that blockchain transparency may change how disclosure works. How much this helps depends on the final standards. S5 · para 22
Retail disclosure: a DAP/TCP Guide, a voting policy, and copies of communications on request. S1 · ss 1020AN–1020AR	We found no specific feature for this in the sources reviewed. Tokeniser says it targets professional use. S16 · Knowledge Hub	**Not covered by the docs** This is a documents-and-process job for the operator.

REQUIREMENT	DESIGN FEATURE DESCRIBED IN THE DOCS	OUR READ
Capital: net tangible assets, cash needs and audit. *Draft:* three NTA options are under consultation. S5 · Section D	Not a technology matter.	**Depends on the licensee**
Custody and possession. S1 · ss 86, 761GB, 761GC	Investors self-custody, with key management and recovery offered. ERC-3643 includes recovery and forced transfer. S16 · Knowledge Hub S26 · ERC-3643	**Unclear** See the open question about admin powers above.
Status as public digital token infrastructure. S1 · s 9E(2)–(3)	Tokeniser says Redbelly is designed to meet the three statutory tests. Redbelly calls itself public digital token infrastructure. S12 · Technology S17 · Asset tokenisation	**Unclear** See below.

The biggest open question: does Redbelly count as public digital token infrastructure?

THE ACT SAYS

Infrastructure qualifies if the protocols that apply to it meet three tests, and no regulation has been made to exclude them. First, they must be "a set of open source and publicly accessible standards for transmitting, processing and recording electronic records in a non-discretionary manner". Second, they must "permit any person to contribute" to the infrastructure by transmitting, processing and recording such records. Third, they must not rely on any participant whose role is so critical that the records cannot be transmitted, processed or recorded without it. Infrastructure can also qualify if regulations prescribe it. S1 · s 9E(2)(a)–(d), (3)

ASIC SAYS

Draft (proposed INFO 225 guidance): infrastructure where "only select persons became able to conduct consensus activities" is not PDTI. ASIC adds that "this could include restrictions for KYC requirements", but is unlikely to include hardware requirements or minimum staking amounts that apply to everyone. ASIC assesses licensing requirements at a point in time, not by reference to a future state. S5 · Table 9

COMPANY STATEMENT

- "On Redbelly, all network participants must prove they are who they say they are in order to get network access." S23 · Accredited issuers Users claim an access credential (passport and biometric check) before getting write access. S22 · User access
- Node operators need network access for two accounts and must stake 100,000 RBNT. They are selected based on "previous experience, location and commitment", and submissions are currently closed. S24 · Become an operator
- Another Redbelly page says AML/CTF and Travel Rule requirements can be applied as needed "without restricting access at the network level". S17 · Asset tokenisation
- Tokeniser says Redbelly is designed to meet all three tests and that the network has more than 400 validators. Tokeniser also acknowledges that regulations can move the line. S12 · Technology S13 · Guardrails

OUR ANALYSIS

On the sources reviewed, it is not clear that Redbelly currently meets the "any person can contribute" test as ASIC proposes to read it. Network access and node operation are gated by identity checks and selection, and Redbelly's own pages describe network-level access in different ways. Three things could settle the question: a change to Redbelly's participation rules, a regulation that prescribes the network under s 9E(3), or final ASIC guidance that differs from the draft.

If Redbelly is not PDTI, that does not mean anyone is doing anything wrong. It means the carve-outs Tokeniser points to for settlement, secondary liquidity and collateral would not apply automatically. Each of those activities would then need to be assessed under the ordinary rules. S12 · Technology This is a question for Redbelly, Tokeniser and their advisers, and a useful topic for a submission on CP 392 before 27 November 2026.

CONTEXT

Redbelly says it was selected for the Reserve Bank of Australia's Project Acacia pilot as part of NotCentralised's securitisation use case. S27 · Project Acacia ASIC says it supported Project Acacia (2025–26), which explored the role of digital money in wholesale tokenised asset markets. S3 · Background Taking part in a pilot is not a licence and says nothing about compliance with the new Act.

08

What to watch next

- **27 November 2026:** CP 392 submissions close. Send them to fintech@asic.gov.au. S3 · 26-245MR
- **Government regulations:** exemptions and other detail are being designed in parallel with ASIC's consultation, and several of ASIC's proposals depend on them. S3 · 26-245MR S5 · About this paper
- **INFO 225 update:** ASIC plans to update INFO 225, including on PDTI, before it finalises the new regulatory guide in early 2027. S6 · RG 000.22 note S5 · proposal E1

- **March 2027:** final standards and guidance are planned. S5 · p 5, stage 4
- **Payments reforms:** some stablecoins will be regulated separately, as "tokenised stored value facilities". S5 · paras 6–7
- OUR ANALYSIS **Redbelly and Tokeniser:** whether Redbelly's participation rules change, and how Tokeniser maps its products and any custody functions onto the DAP and TCP definitions.

09

How we checked

- We read the full text of the Act as made, from the Federal Register of Legislation, and took every definition, threshold and date from it. S1 · whole Act
- We read ASIC's roadmap, media releases, CP 392 and the draft regulatory guide. Where ASIC is only proposing something, the text says *draft*. S2 · Roadmap S5 · CP 392 S6 · draft RG 000
- We checked the commencement date against both the Act and ASIC's latest material, and explain the 8/9 April difference in the timeline.
- Statements by Redbelly and Tokeniser are labelled as company statements and are not treated as facts about the law.
- Each source was fetched and its cited content confirmed against the text it supports. The result for each source is shown under it in the Sources list below.

27 of 27 source links returned HTTP 200 when checked on 30 October 2026, 19:24 UTC.

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Sources

Primary sources come first: the Act itself (S1) and ASIC material (S2–S10). Redbelly and Tokeniser pages (S11–S27) are used only to report what those organisations say about themselves, and are labelled that way in the text. No factual claim relies on news coverage or law-firm commentary. Every in-text citation gives a pinpoint (a section, paragraph, table or page section).

S1 **Corporations Amendment (Digital Assets Framework) Act 2026 (No. 38, 2026), as made, C2026A00038** PRIMARY: LEGISLATION

Federal Register of Legislation (Australian Government) · Assented to 8 April 2026

https://www.legislation.gov.au/C2026A00038/asmade/text

Supports: Definitions (s 761GB digital token, s 86 possession, s 761GC DAP, s 761GD TCP, s 9E PDTI, s 9F custodial staking, s 765E wrapped tokens); DAPs/TCPs as financial products (s 764A(1)(la)-(lb)); constitutionally-covered corporation rule (s 766M, s 9); new dealing (s 766C(1)(ca)); exemptions (s 911A(2)(ja)-(jb), s 911A(4B), s 766A(3)(b)); operator duties (ss 912BB-912BI, 1020AN-1020AR); fundraising (ss 741A-741B); commencement (s 2) and transition (ss 1730-1735); second reading speech dates (endnote).

Link check: HTTP 200; 7/7 cited phrases found

S2 **ASIC's roadmap for digital assets law reform implementation** PRIMARY: REGULATOR

Australian Securities and Investments Commission (ASIC) · 20 April 2026

https://www.asic.gov.au/about-asic/news-centre/news-items/asics-roadmap-for-digital-assets-law-reform-implementation

Supports: Passage on 1 April 2026; 18-month implementation timeline; original statement of 9 April 2027 commencement; duty to comply with existing licensing during implementation; indicative content of asset-holding and transactional and settlement standards (Table 1); 'Month 18 onwards' full implementation.

Link check: HTTP 200; 3/3 cited phrases found

S3 **26-245MR ASIC consults on implementation of new digital asset laws** PRIMARY: REGULATOR

ASIC · 15 October 2026

https://www.asic.gov.au/about-asic/news-centre/find-a-media-release/2026-releases/26-245mr-asic-consults-on-implementation-of-new-digital-asset-laws

Supports: Laws commence 8 April 2027; 'same activity, same risk, same regulatory outcome' and Commissioner Kirkland quote; what firms will need to do; consultation closes 5pm AEDT 27 November 2026; no-action period October 2025 to 30 September 2026; over 140 applications; Project Acacia (2025-26); Government regulatory design in parallel.

Link check: HTTP 200; 4/4 cited phrases found

S4 **CP 392 Digital asset law reform implementation: Proposed standards and guidance (landing page and downloads)** PRIMARY: REGULATOR

ASIC · 15 October 2026

https://www.asic.gov.au/regulatory-resources/find-a-document/consultations/cp-392-digital-asset-law-reform-implementation-proposed-standards-and-guidance

Supports: Contents of the consultation package: draft regulatory guide, draft asset-holding standards, draft transactional and settlement standards, draft financial requirements.

Link check: HTTP 200; 2/2 cited phrases found

S5 **Consultation Paper 392 (CP 392), Digital asset law reform implementation: Proposed standards and guidance (PDF)** PRIMARY: REGULATOR (CONSULTATION, PROPOSALS MAY CHANGE)

ASIC · October 2026 (issued 15 October 2026)

https://download.asic.gov.au/media/0pqj5lgc/cp392-published-15-october-2026.pdf

Supports: Timeline (p 5: stages 1-6, incl. 8 April 2027 and 7 October 2027); purpose of the Act (paras 2-5); payments reforms (paras 6-7); international context (paras 8-9); risk warning (para 14); transparency (para 22); exemptions list (para 38); authorisation needed from 8 October 2027 (para 39); apply by 7 October 2027 (para 45); proposal A4 (list of applicants); platform vs asset protections (para 53); proposal B5 (wallet and address reporting); Section D (three NTA options); Table 9 (proposed INFO 225 guidance on PDTI).

Link check: HTTP 200; 3/3 cited phrases found

S6 **Attachment 1 to CP 392: Draft Regulatory Guide 000 Digital asset platforms and tokenised custody platforms (draft RG 000)** PRIMARY: REGULATOR (DRAFT GUIDANCE, MAY CHANGE)

ASIC · October 2026

https://download.asic.gov.au/media/a3cpo5ds/attachment-1-to-cp392-published-15-october-2026.pdf

Supports: RG 000.7-000.8 (regime overview, operators need an AFS licence); RG 000.20 (platform is a separate financial product); RG 000.22 note (INFO 225 update before finalisation in early 2027); Figure 1 (seven questions); RG 000.35 and note (what is not a TCP; native tokenised fund generally a managed investment scheme); RG 000.36-000.42 (DAP definition and what is not a DAP, incl. MPC technology providers); RG 000.43 (agents); RG 000.46-000.48 (tokens that are financial products); RG 000.60-000.62 (markets and CS facilities); RG 000.67, Table 2, RG 000.80 (financial services around platforms); Table 3 (exemptions, incl. anticipated regulations and inflation indexing); RG 000.76; RG 000.78; RG 000.82-000.84 (no corporate authorised representative issue; authorised intermediary exemption); Table 4 (issue authorisations by business model).

Link check: HTTP 200; 3/3 cited phrases found

S7 **User guide for CP 392: Digital asset law reform implementation, consultation package reader guide (PDF)** PRIMARY: REGULATOR

ASIC · 15 October 2026

https://download.asic.gov.au/media/npwojlkb/user-guide-for-cp392-published-15-october-2026.pdf

Supports: Plain descriptions of DAPs and TCPs (TCP example: assets held in custody such as gold); new ASIC standards commencing 8 April 2027.

Link check: HTTP 200; 1/1 cited phrases found

S8 **ASIC extends no-action position for digital asset businesses to 30 September 2026** PRIMARY: REGULATOR

ASIC · 25 June 2026

https://www.asic.gov.au/about-asic/news-centre/news-items/asic-extends-no-action-position-for-digital-asset-businesses-to-30-september-2026

Supports: Extension of the INFO 225 sector-wide no-action position from 30 June 2026 to 30 September 2026; expanded scope (authorised representative and intermediary arrangements).

Link check: HTTP 200; 1/1 cited phrases found

S9 **25-250MR Updated ASIC guidance supports digital asset innovation and boosts investor protection** PRIMARY: REGULATOR

ASIC · 29 October 2025

https://asic.gov.au/about-asic/news-centre/find-a-media-release/2025-releases/25-250mr-updated-asic-guidance-supports-digital-asset-innovation-and-boosts-investor-protection/

Supports: Updated INFO 225; tokenised securities among products ASIC considers financial products; sector-wide no-action position initially to 30 June 2026.

Link check: HTTP 200; 2/2 cited phrases found

S10 **Deadline looms for digital asset businesses to apply for a licence** PRIMARY: REGULATOR

ASIC · 4 May 2026

https://asic.gov.au/about-asic/news-centre/news-items/deadline-looms-for-digital-asset-businesses-to-apply-for-a-licence

Supports: Earlier ASIC statement that the Act 'will commence on 9 April 2027' (used only to explain the date difference).

Link check: HTTP 200; 1/1 cited phrases found

S11 **Tokeniser homepage, including FAQ ('Is Tokeniser regulated?', 'What about compliance?')** COMPANY STATEMENT

Tokeniser Pty Ltd · Accessed 26 October 2026

https://tokeniser.com

Supports: Tokeniser operates on Redbelly Network; 'Products issued through Tokeniser operate under an Asset Issuer's existing licensing'; eligibility programmed into every asset; Tokeniser is a Redbelly Network project.

Link check: HTTP 200; 2/2 cited phrases found

S12 **Tokeniser: Our Technology** COMPANY STATEMENT

Tokeniser Pty Ltd · Accessed 26 October 2026

https://tokeniser.com/technology

Supports: Tokeniser's statements that Redbelly is designed to meet the three statutory tests for public digital token infrastructure, and that settlement, secondary liquidity and collateral mobility sit in an 'exempt protocol layer'.

Link check: HTTP 200; 2/2 cited phrases found

S13 **Tokeniser: Protocol Finance** COMPANY STATEMENT

Tokeniser Pty Ltd · Accessed 26 October 2026

https://tokeniser.com/protocol-finance

Supports: Use of ERC-3643 and ERC-7575 structures; Tokeniser's own 'Guardrails' (offer still regulated; regulations can move the line; critical participant test; rights attached to tokens).

Link check: HTTP 200; 2/2 cited phrases found

S14 **Tokeniser: Automated compliance** COMPANY STATEMENT

Tokeniser Pty Ltd · Accessed 26 October 2026

https://tokeniser.com/product/superpowers/automated-compliance

Supports: Pre-trade eligibility checks, logging of every check; 'Engineered to align with Australia's Digital Assets Framework, operating under your existing licence'.

Link check: HTTP 200; 2/2 cited phrases found

S15 **Tokeniser Knowledge Hub: How does Tokeniser handle investor compliance?** COMPANY STATEMENT

Tokeniser Pty Ltd · Accessed 26 October 2026

https://tokeniser.com/resources/knowledge-hub/australia/how-tokeniser-handles-investor-compliance

Supports: KYC/AML and investor classification before wallet activation; rules encoded into the token and checked at every transfer; on-chain compliance records.

Link check: HTTP 200; 2/2 cited phrases found

S16 **Tokeniser Knowledge Hub: What is self-custodial asset administration?** COMPANY STATEMENT

Tokeniser Pty Ltd · Accessed 26 October 2026

https://tokeniser.com/resources/knowledge-hub/platform/what-is-self-custodial-asset-administration

Supports: Investors hold tokens in their own wallets; Tokeniser designed for professional fund administration, not retail self-custody; provides key management and recovery mechanisms.

Link check: HTTP 200; 2/2 cited phrases found

S17 **Redbelly Network: Asset Tokenisation** COMPANY STATEMENT

Redbelly Network Pty Ltd · Accessed 26 October 2026

https://redbelly.network/asset-tokenisation

Supports: Redbelly describes itself as public digital token infrastructure; verifiable credentials and eligibility at point of trade; AML/CTF/Travel Rule applied 'as needed … without restricting access at the network level'.

Link check: HTTP 200; 1/1 cited phrases found

S18 **Redbelly Network Technical Documentation (Receptor; Onboarding and Eligibility Kit)** TECHNICAL DOCUMENTATION

Redbelly Network · Accessed 26 October 2026

https://docs.redbelly.network

Supports: Redbelly is a layer 1 blockchain built for real-world asset tokenisation; Receptor and the Eligibility SDK.

Link check: HTTP 200; 1/1 cited phrases found

S19 **Redbelly docs: IndividualOnboardingSDK overview** TECHNICAL DOCUMENTATION

Redbelly Network · Accessed 26 October 2026

https://docs.redbelly.network/pages/eligibility-sdk/onboarding/individual/overview/

Supports: Onboarding includes wallet authentication, KYC verification and Redbelly on-chain permission setup.

Link check: HTTP 200; 1/1 cited phrases found

S20 **Redbelly Developer Portal (Vine): Eligibility on Redbelly** TECHNICAL DOCUMENTATION

Redbelly Network · Accessed 26 October 2026

https://vine.redbelly.network/identity/eligibility/

Supports: Programmable eligibility criteria via Receptor; Proof by Query (zero-knowledge, on chain) and Selective Disclosure (off chain); developers decide which issuers they trust; accredited issuers for network access credentials.

Link check: HTTP 200; 2/2 cited phrases found

S21 **Redbelly Developer Portal (Vine): Verifiable credentials** TECHNICAL DOCUMENTATION

Redbelly Network · Accessed 26 October 2026

https://vine.redbelly.network/identity/verifiable-credentials/

Supports: Receptor is built on the W3C verifiable credential model (issuer, holder, verifier).

Link check: HTTP 200; 1/1 cited phrases found

S22 **Redbelly Developer Portal (Vine): Accessing Redbelly Network** TECHNICAL DOCUMENTATION

Redbelly Network · Accessed 26 October 2026

https://vine.redbelly.network/identity/user-access/

Supports: Users must claim an access credential from a network accredited issuer (passport with biometric checks) before enabling write access.

Link check: HTTP 200; 1/1 cited phrases found

S23 **Redbelly Developer Portal (Vine): Accredited issuers** TECHNICAL DOCUMENTATION

Redbelly Network · Accessed 26 October 2026

https://vine.redbelly.network/identity/accredited-issuers/

Supports: 'On Redbelly, all network participants must prove they are who they say they are in order to get network access.'

Link check: HTTP 200; 1/1 cited phrases found

S24 **Redbelly Developer Portal (Vine): Become an operator** TECHNICAL DOCUMENTATION

Redbelly Network · Accessed 26 October 2026

https://vine.redbelly.network/nodes/become-operator/

Supports: Node operators need network access for two accounts, must stake 100,000 RBNT, apply and are selected on experience, location and commitment; submissions currently closed.

Link check: HTTP 200; 3/3 cited phrases found

S25 **Redbelly Developer Portal (Vine): DBFT and super block (Consensus)** TECHNICAL DOCUMENTATION

Redbelly Network · Accessed 26 October 2026

https://vine.redbelly.network/consensus/

Supports: Leaderless DBFT consensus; deterministic (quasi-instant) finality; Redbelly states the chain cannot fork.

Link check: HTTP 200; 1/1 cited phrases found

S26 **ERC-3643: T-REX - Token for Regulated EXchanges** TECHNICAL STANDARD

Ethereum Improvement Proposals (eips.ethereum.org) · Accessed 26 October 2026

https://eips.ethereum.org/EIPS/eip-3643

Supports: Standard requires an on-chain identity system, a recovery system, the ability to freeze investor wallets, pause, and agent forced transfers; compliance check on each transfer.

Link check: HTTP 200; 3/3 cited phrases found

S27 **Redbelly Network: Project Acacia** COMPANY STATEMENT

Redbelly Network Pty Ltd · Accessed 26 October 2026

https://redbelly.network/projectacacia

Supports: Redbelly's statement that it was selected for the Reserve Bank of Australia's Project Acacia pilot as part of NotCentralised's securitisation use case.

Link check: HTTP 200; 2/2 cited phrases found

Read online, with the community summary and downloads: https://digital-assets-act-guide.vercel.app